
Review: Responsibility and Free Choice

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Reviewed work(s):

An Essay on Free Will. by Peter van Inwagen

Source: *Noûs*, Vol. 20, No. 2 (Jun., 1986), pp. 241-260

Published by: Blackwell Publishing

Stable URL: <http://www.jstor.org/stable/2215393>

Accessed: 16/10/2009 13:09

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CRITICAL STUDIES

Responsibility and Free Choice

A Critical Study of Peter van Inwagen's *An Essay on Free Will* (Oxford: Clarendon Press, 1983), vi + 248 pp.
\$29.95 (cloth)

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I. INTRODUCTION

With this volume Professor van Inwagen has presented a solid, informed, and well-argued piece of philosophy. Incorporating his reflections on free will, moral responsibility, determinism and related topics published over the past decade, it contains a powerful array of considerations favoring the incompatibility of determinism with free and responsible agency. Any appearance of repetition and excessive detail in the exposition is easily outweighed by its precision and security against hasty, ill-formed and misplaced criticisms. Van Inwagen's sustained development of a central incompatibilist argument coupled with his anticipation and disarming of a number of likely objections poses an enormous task for any critic of different persuasion and constitutes one of the more rigorous challenges to the compatibilist paradigm. At the same time, he avoids polemic and exhibits a welcome sensitivity to possible weaknesses in the argumentation. His book could readily become an incompatibilist classic, destined for frequent citation in future debates on free will.

Of the six chapters, III, IV and V deal with the consistency of free will and determinism, what van Inwagen calls the *Compatibility Problem*, and it is upon these that I shall focus. Chapter I is introductory, II is a largely independent discussion of fatalism, and VI treats the *Traditional Problem* of whether humans are free, its solution depending upon chapter V. Four theses occupy center stage (my numbering): (T1) determinism is incompatible with free will; (T2) moral responsibility entails free will; (T3) human beings believe that they have free will; and (T4) human beings *do* have free will. The first two imply that determinism is also incompatible with moral

responsibility, the third renders inconsistent any deliberating determinist, while the first and the fourth imply indeterminism. The core reasoning in support of (T1) is revealed early on:

If determinism is true, then our acts are the consequences of the laws of nature and events in the remote past. But it is not up to us what went on before we were born, and neither is it up to us what the laws of nature are. Therefore, the consequences of these things (including our present acts) are not up to us (P. v).

Van Inwagen calls this the ‘Consequence Argument’ suggesting that each of his three *reductio* arguments for (T1) in chapter III is no more than one of its variants (pp. 16, 56, 237).

Despite the high calibre of this work, I am not convinced that van Inwagen has established theses (T1)-(T4), at least not as he understands these claims. A good deal remains to be said for compatibilist construals of moral responsibility and free will that militate directly against the Consequence Argument and the recent resurgence of incompatibilism which his book so ably represents. In what follows, I will indicate a direction in which a compatibilist theory might unfold, and argue that because this approach is not ruled out by the considerations van Inwagen has adduced then his arguments fall short of their objectives.

II. ABILITY

Van Inwagen notes that he uses the expression ‘free will’ out of respect for tradition, then proceeds to the following characterization:

When I say of a man that he “has free will” I mean that very often, if not always, when he has to choose between two or more mutually incompatible courses of action—that is, courses of action that it is impossible for him to carry out more than one of—each of these courses of action is such that he can, or is able, or has it within his power to carry it out (p. 8).

Subsequently, he gives a similar construal in terms of ability to *choose* (p. 180), though little depends upon concentrating on choice rather than action. The central notion of an agent’s power or *ability to act* is not explicitly defined, but van Inwagen suggests that it “is as clear as any philosophically interesting concept is likely to be” (p. 8). This statement is misleading, as it will turn out, despite his intriguing adjectives and efforts to distinguish ability from a variety of other notions (pp. 9-13). As indicated in the cited passage, ascriptions of ability are frequently made with an assortment of other locutions, e.g., ‘can’, ‘is within his power’, ‘has a choice’, ‘is possible

for him to do', and so on, but it is safe to regard these as indefinable with 'is able'.

Determinism is the doctrine that the past determines a unique future, or, more exactly, the conjunction of two claims: that for each instant there is a proposition expressing the state of the world then, and, that if p and q are propositions expressing states of the world at some instants then the conjunction of p with the laws of nature entails q (p. 65). By 'laws of nature' van Inwagen refers to laws which apply to things that are *not* rational agents, but this must be understood as allowing that determinism provides for the determination of human behavior—an indication that with this use of 'apply' he has *physical* determinism in view. He studiously avoids the term 'cause' in his description, yet has a good deal to say about causation, especially in chapter IV where he denies that causes "determine" or "necessitate."

That van Inwagen locates an incompatibility between determinisms and the possession of free will yields an important clue about how to understand ascriptions of ability. To say of someone that he "has free will" or "has a choice" with respect to the action of ϕ -ing at a given time is not only to grant him an ability to ϕ at that time but also an ability to do otherwise (p. 162). That is, X's being free to ϕ at t implies that X's ϕ -ing at t is as of yet a *contingent* matter, that it is both *possible* that he ϕ s and *possible* that he refrains from ϕ -ing. The unqualified use of 'possible' here mandates caution; mere logical possibility cannot be meant insofar as p is logically possible just in case it is consistent with the laws of logic,¹ and the same holds for any possibility defined *solely* by reference to laws of nature. Recourse to the actual course of events is required, and here van Inwagen supplies a valuable hint:

if I have a free choice between A and B, then my doing A is consistent with the past and the laws of nature and so is my doing B (p. 15).

Accordingly, to say that it is both possible that X ϕ s and possible that he refrains—in the sense relevant to free will—is to say that both his ϕ -ing and his not ϕ -ing are consistent with the conjunction of the past and the laws of nature (where 'the past' signifies the course of the world preceding the time at which the ability is possessed). By his characterization of determinism, therefore, neither X's ϕ -ing nor his not ϕ -ing is *determined* by the past, using 'determined' in a derivative sense, as he allows, and noting that his terminology permits us to say that the future determines the past. I will speak of this relativized modality as *categorical* possibility and, similarly, of *categorical* ability and free will.² In so doing, I am not

giving an analysis of his notion of ability; that it is categorically possible that $X \phi$ s at t is intended as only a necessary condition for X 's being *able* to ϕ at t .

Since compatibilists also avail themselves of expressions like 'is able' and 'has a choice', care must be taken to keep the debate from folding into a merely verbal dispute. At the same time, any attempt to assess van Inwagen's arguments will inevitably be thrown back upon his notion of ability, and here some daring in probing his exact meaning is called for. I think there is little doubt that the type of free will at stake in (T1) is categorical in nature and not some generic concept with which even compatibilists could feel comfortable. There is every reason to believe that the same notion is involved in (T2)-(T4). Still, the qualifier 'categorical' is not van Inwagen's, and he may insist that he is relying upon his, or our, *pre-analytic* understanding of ability in offering the premises that he does (see van Inwagen (1980), p. 100 and Slote (1982), p. 22). Consequently, we must not prejudge his argument by assuming categorical ability to be the notion he begins with rather than what he ends up with *subsequent to* his examination of the issues at hand, specifically, deliberation and moral responsibility. It is with the latter that we must grapple in order to arrive at an assessment which is not biased from the outset.

III. DELIBERATION

According to van Inwagen, a rejection of free will would have at least "two interesting consequences"; one who rejected free will, first, could not consistently deliberate and, second, would be committed to denying the existence of moral responsibility. I will contest him on both scores, in order.

All philosophers who have thought about deliberation, van Inwagen writes, agree that one cannot deliberate about whether to perform an act without believing it possible to do so (p. 154). More exactly, one who deliberates about ϕ -ing must take *both* his ϕ -ing and not ϕ -ing as possible, hence, as contingent, and van Inwagen is correct, I think, in holding that some such *presumption of freedom* is present in all deliberation. There is little doubt that, here, van Inwagen has a categorical modality in mind; both ϕ -ing and not ϕ -ing are taken by the agent as consistent with the past and laws of nature, and it is this that allows him to conclude, in discussing the determinist Holbach, that "to reject free will is to condemn oneself to a life of perpetual logical inconsistency" (p. 160). Such a perspective on deliberation, he admits (pp. 154, 205), underlies his acceptance of (T3), on the surface, the least controversial of

his main theses. However, with the consequent inconsistency of any deliberating determinist—which van Inwagen is not alone in advocating (see Taylor (1966), Ginet (1966) Castañeda (1975), and Lamb (1977) Denyer (1981))—it is bound to agitate the rationally-minded Holbachian who would deny that he so blatantly contradicts his cherished thesis.

For this reason, I am troubled by (T3) and the view of deliberation on which it rests. Though it is undeniable that one deliberates only about what he takes to be *open*, hence, contingent, it is not transparent how this modality should be understood. Perhaps some deliberators *do* take their future acts to be categorically contingent, but little thought has been given to the hypothesis that a more restricted interpretation is all that is demanded.

I have attempted (1985) to fill this gap with a fresh account of a deliberator's presumption of open alternatives and, thus, of (T3). Here, I will confine myself to highlighting its main features. First, where X is deliberating about whether to ϕ he must presume that he can ϕ in at least the conditional sense, that is, he must satisfy the schema,

- (E) X presumes that he would ϕ if and only if he were to choose to ϕ ,

which can be labeled the *presumption of efficacy*. Of course, there are several fine points to be raised concerning the embedded biconditional, the implicit temporal parameters, the use of 'choose' and 'he' within attitudinal scope, and other matters.³ Beyond this, there is little doubt that (E), or a suitable variant, reveals a crucial component of a deliberator's sense of self-agency, namely, that an intentional effort on *his* part is essential to his doing.

The presumption of efficacy, secondly, does not by itself yield a sense of openness; an agent satisfying (E) may suppose that his choosing not to ϕ is already determined, hence, impossible, in which case he does not take ϕ -ing as open but, instead, as something settled or closed off to further deliberation. It is here that a *presumption of contingency* comes to fore; a deliberator presumes that it is, as of yet, an indeterminate matter whether he will ϕ or will refrain from ϕ -ing. But what does this come to? It seems obvious that the agent does not believe his ϕ -ing to be already determined—though see Kapitan (1985)—but this is not to say that he believes it to be undetermined. Not believing something to be determined differs from taking it to be not-determined, a matter of the scope of negation obscured by the ambiguity of 'he does not believe'. Still, exposing this confusion (of which I am not accusing van Inwagen)

leaves unexplicated the presumed contingency. One alternative to the categorical reading is epistemic contingency where the deliberator takes his ϕ -ing as contingent relative to what he *knows* to be the case. This squares nicely with the response of the reflective deliberator who, when asked if he knows of anything determining his eventual act, says: "I am unaware of any such thing; as far as I can tell it is entirely up to me which alternative I choose." But there are limits here too; the words "as far as I can tell," in fact, point to a broader *doxastic* interpretation as follows:

- (C) X presumes that his ϕ -ing is contingent relative to what he then believes.

This version holds, simply, that a deliberator takes no set of his beliefs to be sufficient for either his ϕ -ing or for his not ϕ -ing.

As formulating a necessary condition on deliberation (C) is uncontroversial, though is ambiguous as it stands. Most importantly, since the modality falls within attitudinal scope the same must hold for the qualifier 'relative to what he then believes'. An *external* occurrence would render (C) unsuitable given that a deliberator might overlook what he actually believes, but an *internal* reading avoids this problem. The subsequent element of self-reference in fixing this doxastic contingency must be emphasized.

Conditions (E) and (C) would appear to concern all decision-making, regardless if preceded by conscious deliberation; one *decides* only by selecting one thing from among a range of presumed alternatives. They might even govern all *intention*; what would be the point of intending something which is not taken as open at some time prior to intending it? If so, every intention is a choice, minimally, between a course of action and its complement. In this way, the presumption of freedom underlies all practical thinking (see Kant (1959, 1956) and Castañeda (1975)).

Granted that (E) and (C) are necessary conditions for an agent's presumption that a course of action is open, a more potent, and less obvious, claim is that they are jointly *sufficient*. This would generate an account of a deliberator's sense of his own ability to act *and* of (T3) that avoids imputing indeterministic beliefs and rendering deliberating determinists inconsistent. But what can be said in favor of this conception? I have argued that it readily accounts for cases of non-deliberation that van Inwagen mentions, as well as for a deliberator's antecedent states of indecision and uncertainty, his sense of an ability to choose, and his capacity to be *aware* of his own freedom.⁴ However, in the final assessment, the adequacy of this view, or its comparative merit alongside van Inwagen's

own, is to be settled on empirical grounds. What emerges as a criticism, at this stage, is that van Inwagen brings forth no data that decisively favors his interpretation over others. As a result, he has not shown that one of the "consequences" of rejecting free will is inconsistency whenever one deliberates, nor has he established (T3)—where the type of free will in question is categorical in nature.

There is, however, a response van Inwagen can make to this criticism. Subsequent to his brief discussion of deliberation he turns his attention to (T2) and, again, invokes a notion of ability that he has previously argued to be incompatible with determinism. So he might reply, with considerable justification, that a deliberator assumes he has an ability to act *of the sort* necessary for moral responsibility. That is, insofar as he recognizes himself to be a free agent he thereby realizes that he himself is responsible for his acts and choices. If so, then the account of deliberation depends upon a theory of moral responsibility and the fate of (T3) becomes intertwined with that of (T2). Our attention must now turn to the latter.

IV. MORAL RESPONSIBILITY

Van Inwagen's initial argument for (T2) can be paraphrased as follows: (i) to be morally responsible is to have failed to do some act or to have brought about some result (an event or state-of-affairs, p. 166); (ii) one is morally responsible for having failed to do an act or for having brought about a result only if he could have performed that act or have prevented that result; (iii) to have been able to do otherwise is to have had free will; therefore, moral responsibility exists only if someone (the responsible agent) has free will (pp. 180-2). Van Inwagen omits clarifying remarks about moral responsibility, indicating, at most, that one is morally responsible if one is subject to a moral ought—where *ought* implies *can* (p. 161).

Are we so clear about moral responsibility? What is it for an agent to be morally responsible for something he has done, or not done, or might do? Typically, we distinguish moral responsibility from legal responsibility, or, more generally, from any sort of responsibility indexed by a non-moral code. When *N* is a normative code, there is little doubt that *X* is *N*-ly responsible for ϕ -ing only if *X* is, or was, in some way *N*-ly obligated with respect to ϕ -ing. But this reveals little, in particular, it does not display the connection between responsibility and the notions of blameworthiness and praiseworthiness, i.e., to the idea that a judgment of responsibility involves an ascription of a negative or positive attribute to an agent. Still, an analysis in deontic terms is not precluded. Thus, at one level, philosophers speak of *X* as being *N*-ly responsible for ϕ -ing

just in case not only is X *N*-ly obliged with respect to ϕ -ing, but there are agents whose acts of *holding X responsible* for ϕ -ing—conferring blame or praise upon X—are, or would be were they to be performed, *N*-ly permissible. To say that X is *N*-ly responsible, in this sense, is to imply that *some* agents are or would be *N*-ly justified in holding X responsible, e.g., depriving X of certain liberties, acknowledging that competing accounts of such justification exist, utilitarian, retributive, etc.⁵

Because an ascription of blameworthiness or praiseworthiness of this sort concerns one's relationships to agents within a context specified by a certain normative code, let us label it a judgment of responsibility from an *external* perspective. Since we speak of the moral codes of societies it would appear that some judgments of moral responsibility can be so classified. A person is morally responsible from the external perspective only if it would be *morally* justified for someone to hold that person responsible for what he or she has done, and, unless I am mistaken, several philosophers have written of moral responsibility in just this sense.⁶ We can move even further and treat responsibility in an unqualified manner where holding someone responsible becomes justifiable all things having been taken into account.⁷ Still, we speak in the external mode.

Something is lacking. In holding persons responsible, one might argue, we are only acting *as if* they were really responsible, and, despite justifiability of such acts, there is a further sense in which persons can be blameworthy or praiseworthy for what they do. Judgments of moral responsibility are also thought to reflect a measure of *moral worth*, the degree of virtue and vice, and need not be limited to permanent dispositions of persons but can be bound to specific actions, as when we say that she behaved wickedly on that occasion despite her generally upright character. By way of contrast, judgments of this sort issue from an *internal* perspective, referring not to one's relationships to others within a normative context but to characteristics possessed *independently* of whether anyone is justified in levying blame or praise.⁸

The internal perspective dominates Kant's treatment of rational agency and the good will in Kant (1959, 1956). It is marked by a nearly exclusive focus upon the internal states of an agent, his intentions, desires, values, beliefs, and so forth, factors so rigorously spurned by behaviorists cast from the Skinnerian mold. But in distinguishing it from the external perspective, it should not be thought that there are two separate kinds of moral responsibility; there might be just *one* phenomenon with different aspects and perhaps justification for holding someone responsible entails that

the agent *be* responsible as viewed internally. Indeed, the requirement of *mens rea* in the legal setting suggests more than an occasional coalescence of the two perspectives.⁹

Does moral responsibility, as viewed from either perspective or both, require free will? Does it entail categorical free will? In answer, let us reconsider van Inwagen's lengthy discussion of a Frankfurt-style example (see Frankfurt (1969), Audi (1974), Lamb (1977), Fischer (1982), *et al*). A man, Gunnar, decides to shoot his colleague Ridley. Unknown to Gunnar, a third person, Cosser, has the ability to directly manipulate Gunnar's nervous system—suppose Cosser has just connected a device which can both monitor the nervous system and induce in it intentional states. Cosser, who wants Gunnar to shoot Ridley, will cause him to choose to do so should Gunnar show signs of not doing so on his own. But Cosser finds no need to do this, for Gunnar shoots Ridley "on his own," bringing about Ridley's death. The Frankfurt-style conclusion is that Gunnar is morally responsible for shooting Ridley even though he could not have done otherwise, thus, that premise (ii) of the preceding argument is false.

Van Inwagen's rejection of this conclusion, based on his (1978), is well-known and too detailed to repeat here, so I must assume familiarity with it. One element in his response is his thesis that events are individualized in terms of different causes, a criterion that some have questioned (see Fischer (1982)). However, individuation by causes does have some plausibility given certain characterizations of events, say, as space-time volumes or Whiteheadian actual entities, though van Inwagen offers nothing beyond examples, e.g., the death of Caesar. More controversial is his assumption that the only *results* one could be responsible for are events so understood or states-of-affairs construed as universals, for instance, Ridley's being dead. Presumably, Gunnar would be responsible, if at all, for Ridley's being dead *at* a particular time *t*, say, three seconds after having expired from the gunshot wound inflicted by Gunnar. No killer is responsible for his victim's death *per se*—death being the grim certainty that it is—but for his victim's death at a particular time or in given circumstances. This being so, there is little question that such *concrete* states-of-affairs are to be included among the results for which agents can be responsible.

How is van Inwagen's defense of (ii) affected? This depends upon the status of concrete states-of-affairs. If *particulars*, we consider whether they are governed by the "same causes" criterion or are better viewed as more finely-grained entities, perhaps, "Kim-Martin" events, for which the criterion admittedly fails (p. 242).

And here, I think, the nod goes to the latter, as it would seem that it is the finely-grained entities for which we hold people responsible. We might not blame a man who swats and kills a frightening-looking spider crawling up his arm as he relaxes in his easy chair, but we might if, in the same circumstances, he were to swat and kill the sole surviving member of the harmless species *S*. Suppose, unbeknownst to the man, that the frightening-looking spider crawling up his arm *is* the sole surviving member of *S*; do we blame him for the spider's being dead at *t* (three seconds after he killed it)? Obviously not, at least not to the degree that we would had he known just what spider that was. We might, in fact, commend him, concerned as we are about possibly dangerous spiders in the house. Now, is the state-of-affairs, "the frightening-looking spider which was crawling up his arm is dead at *t*" *identical to* "the spider which was the sole surviving member of species *S* is dead at *t*" or are they *distinct*? If identical then in commending the man for killing the spider we are, *ipso facto*, commending him for making a certain species extinct, an implausible conclusion. Acknowledging their distinctness, we are forced to reject the "same causes" criterion for concrete states-of-affairs and, therefore, can block van Inwagen's inference that had Cosser caused Gunnar to shoot Ridley then the latter's death would have been a particular *differing* from the result which Gunnar caused on his own and, thus, could have prevented (p. 170).

On the other hand, if a concrete state-of-affairs is a *universal*, as seems to be van Inwagen's preference (p. 242), we avoid saying that Gunnar is responsible for Ridley's being dead as such. With the added temporal parameter we can sidestep commitment to the absurdity that Gunnar is responsible for one of the inevitabilities of life, and undercut van Inwagen's rejoinder to the Frankfurt-style conclusion as regards states-of-affairs (pp. 171-3). In either case, his attempt to rescue premise (ii) is unconvincing.¹⁰

Perhaps another strategy can be erected for defending (ii) in light of this accommodation of concrete states-of-affairs. To circumvent this avenue, and van Inwagen's other examples, let us take up the question of Gunnar's responsibility directly. It can be granted that someone with knowledge of Cosser and his machine might not be justified in blaming Gunnar, given the difficulty of establishing criminal intent. On the other hand, knowing nothing of Cosser, he might well *be* justified in tackling Gunnar, taking his gun away, delivering him to the police, or, as the case may be, in prosecuting Gunnar, sentencing him, incarcerating him and so forth. It would not be morally wrong for the well-meaning bystander, lawyer, judge

or jailer to do their moral duty in *holding* Gunnar responsible despite ignorance of prevailing conditions. The external perspective, therefore, affords little encouragement for the claim that moral responsibility entails categorical free will (cf., Brandt (1961) and Frankena (1973)).

What about the internal perspective? Here there is even less reason to exempt Gunnar from blame. If, as we may suppose, Gunnar's intent was to kill Ridley and if his motives were of the meanest sort, e.g., to revenge his recent loss in handball, a reason he believes is wrong to kill from, then we have firm ground for regarding him as morally deformed. His *moral worth* in acting as he did is not affected by the external circumstance of being subject to monitoring and possible manipulation—a circumstance Gunnar had no knowledge of—and, so, he is no less wicked and reprehensible for having killed Ridley.

From both perspectives, separately or jointly, there are grounds for judging Gunnar morally responsible for having brought about Ridley's death at *t*. The Frankfurt-style rejection of premise (ii), or, in van Inwagen's version of the argument, principle PPP2 (p. 171), remains in force *if* 'could have' is read categorically, and it is of little use to rest content with *intuitions* to the contrary without a more detailed examination of moral responsibility. In drawing this conclusion, moreover, we have not violated his principle, "if a certain state-of-affairs would have obtained no matter what choices or decisions X had made, then X is not responsible for it" (p. 174). That is, the Gunnar case need not be described so that had Gunnar decided *not* to shoot Ridley then he would have done so anyway; it can be stipulated, while remaining within the bounds of possibility, that Cosser's control is so extensive that any decision Gunnar makes is one that he, Cosser, allows to occur. We are not, then, ascribing blame in a situation where Gunnar is subject to possible *compulsion*.

But now we court disaster, or so it will seem to many. By such reasoning we should count Gunnar responsible for shooting Ridley even if *all* his choices, values, desires, and beliefs were directly induced by Cosser with his devilish machine, for this added circumstance does not at all affect the reasons for conferring blame from either the external or internal perspective. And how implausible the reasoning becomes, for Gunnar would then be no more than a "puppet," whom it would be absurd, even immoral, to hold responsible.¹¹ We come, at last, to a case that plagues all compatibilist theories, not only of the traditional conditionalist variety but also versions that locate an agent's autonomy in his rationality or in

some sort of accord between his will and his deeper motivational structure (see Dworkin (1970), Frankfurt (1971), Watson (1975), Foley (1978), and Davis (1979)).

How can the compatibilist respond to this apparent clincher? The claim that Gunnar the puppet is exempted from responsibility because of the *way* in which his behavior is determined is relevant only in the external perspective as regards someone who has reason to believe that Gunnar is so manipulated. That is, we punish or bestow blame with the hope of producing some beneficial change—retributionists notwithstanding—a practice that is pointless if the agent is manipulated as Gunnar is. Of course, were Gunnar to behave in a wildly destructive manner we have no choice but to forcibly restrain him, but beyond this, corrective measures are more sensibly directed towards Cosser, the controlling source. *This*, I think, captures what is intuitive about exempting Gunnar. But for the bystander, lawyer, judge or jailer knowing nothing of Cosser, the answer remains as before; Gunnar is blameworthy for shooting Ridley with the same justification for punishment available. The causal origins of Gunnar's act are even less relevant from the internal perspective; what matters is the outcome, and this, whether we speaking of Gunnar's act, character or inner states, can only be appraised negatively, despite being the direct result of Cosser's activity.¹²

The puppet case is not the clincher it is thought to be! Once we distinguish between the external and internal perspectives in judging responsibility we realize that the compatibilist can account for the sense in which the puppet is not responsible and, yet, when required by his own position, accommodate without embarrassment the puppet's responsibility. In neither case is anything conceded to the incompatibilist. With the distinction we are in a better position to appreciate both the difference between ascribing responsibility and holding someone responsible *and* the role that knowledge of the determining factors plays in fixing justification for conferring blame, and, therefore, to abandon views which imply that if a person suffers from a morally defective character, as judged internally, then it is right to hold him responsible.

This assessment, I fear, will sound excessively cold-hearted, even bizarre, and precisely because there seems to be no sense in which a puppet is a *free* agent. Is this so? It can easily be added that Gunnar presumed his shooting Ridley to have been an *open alternative* for him; as far as he himself could tell he was a free agent in that he was unaware that any factors would determine his shooting Ridley (or not) and, thus, that he could avoid doing so. This, when coupled

with the efficacy presumption, gave Gunnar a sense that his eventual act was under his control with its causal origin in himself alone. Gunnar acted "under the idea of freedom," to use Kant's terms, and satisfied a necessary condition for at least higher degrees of responsibility, namely,

- (C1) at a time appropriately prior to t , X presumed that his ϕ -ing then (at t) was an open alternative for him,

where a commentary on 'appropriately' is obviously needed. From the internal perspective, at least, this strengthens the ascription of blame.

More than this; one who takes his ϕ -ing to be an open alternative actually *is* free as regards ϕ -ing. He is *internally free*, meaning, that *within the context fixed by what he himself takes to be the case* (1) his choice to ϕ (or not) would be efficacious, (2) his ϕ -ing is contingent, (3) his choosing to ϕ is contingent, and (4) he is as of yet uncommitted to either ϕ -ing or to not ϕ -ing, each of which is an ingredient in any reliable account of practical freedom.¹³ What emerges is the exciting possibility that the free will requirement is largely a demand of internal freedom of this sort, not categorical, but *doxastic* freedom, a crucial component of which is the self-referential doxastic contingency described above. And yet, through fulfillment of (1)-(4), it is a species of *freedom*, resting on *bona fide* contingency and not just on the presumption of such.¹⁴

Compatibilists now have at their disposal a further element in constructing concepts of free choice and action, in addition to the more familiar,

- (C2) X ϕ ed at t because he chose to, such that had he chosen not to then he would not have ϕ ed at t ,

where this implies that X's ϕ -ing was *voluntary*, and,

- (C3) in ϕ -ing at t , X was not subject to causes preventing him from acting in accord with his will (reason, values, etc.).

Both conditions, like (C1) itself, are stated in very general terms to allow for a variety of compatibilist theories distinguished by their accounts of efficacy and preventive causes. No assumptions are made here about their independence from each other or from (C1).

For responsibility viewed internally, satisfaction of (C1) may well exhaust the free will requirement (see note 14), though it is a small matter to include (C2) and (C3) as well. From the external perspective there is more reason to require each, depending upon the degree of blame or praise to be levied. If Y is to be justified

in holding X responsible, however, Y must have reason to suppose that X was not subject to exculpating conditions, including not just preventive causes but manipulation as well. A further dimension of freedom is needed, of which the following seems a promising candidate:

- (C4) Y is epistemically justified in presuming that X, in ϕ -ing at t , (i) satisfied (C1), and (ii) was not subject to exculpating circumstances.

Preserved, thereby, is the time-honored conception that moral responsibility is impossible without free will, or, to revert to Kant (1956) once again, that freedom is the *ratio essendi* of morality, though in a sense that falls short of incompatibilist designs. The treatise-sized task of arguing the sufficiency of a concept of freedom rooted in doxastic contingency and the listed conditions cannot be undertaken here. What *can* be said—and here I come to the heart of the argument—is that van Inwagen’s reasoning does not demonstrate its inadequacy. Since he has not undermined all the options that remain for the compatibilist, one of which we have unveiled, he has not shown that the type of freedom required by moral responsibility is categorical in nature, and, therefore, has not established one of the premises of his argument (either (ii) or (iii), depending upon where categorical freedom is injected). Far from being a burden of proof argument that he has elsewhere disparaged (van Inwagen 1980), this expels his initial defense of (T2) from the domain of acceptable inferences, or, more humbly, reveals the urgent need for a fuller account of moral responsibility before such a defense can be sustained.

V. INCOMPATIBILISM

Attentive to the reply that moral responsibility entails free will in a sense *other* than that incompatible with determinism, van Inwagen rejoins with a version of the Consequence Argument tailored for moral responsibility (pp. 183-8). Where ‘ Np ’ abbreviates ‘ p and no one is, or ever has been, even partly responsible for the fact that p ’, he offers the rule,

- (B) $N(p \supset q), Np \vdash Nq$.

Assume that determinism is true, and replace ‘ p ’ by a sentence expressing a conjunction of a proposition about the state of the world in the remote past with one asserting the laws of nature, and ‘ q ’ by any sentence expressing a truth. No one is responsible for the remote past, nor for the laws of nature, nor for the fact that the

past determines what it does. Applying (B), no one is responsible for anything, and, hence, determinism is incompatible with free will, and moral responsibility entails (categorical) free will.

This argument is a structural twin of the Third Argument for incompatibilism (pp. 93-105), and van Inwagen observes that one is sound just in case the other is (p. 184). The counterpart to (B), here, is rule (β), inscriptionally identical to (B) but with 'Np' reading ' p and no one has, or ever had, any choice about whether p '. He goes to some length in defending (β) stating, at one point, that it "appeals immediately to the reflective intellect" (p. 124), yet also concedes that (β) is "the most doubtful thesis the incompatibilist must accept" (p. 222). Such wavering raises a question about his strategy, namely, how he intends the phrase 'has a choice' or 'has no choice' to be taken. The appraisal of both (β) and the Third Argument hinges entirely upon this point.

Suppose 'X has a choice about whether p ' is understood categorically; then its satisfaction implies that both X's doing something that entails the falsity of p and his doing something that entails the truth of p are consistent with the past and laws of nature. That is to say, X *can*, categorically, do either. Then Np implies that no one can, categorically, do anything that entails the falsity of p , and this is so because p is then a *consequence* of the past and laws of nature. So construed, (β) is logically valid. Thus, if Np and $N(p \supset q)$ are true then both p and $p \supset q$ are consequences of the past and laws of nature. But then q is also a consequence of the past and laws of nature, and anything which entails the falsity of q is inconsistent with the past and laws of nature. Consequently, no one can, categorically, do anything which would render q false, and Nq follows as a matter of logic.

The Third Argument is unquestionably sound with this understanding; determinism is incompatible with categorical free will. No one with any philosophical sense could believe otherwise. What, then, prevents us from deeming the Third Argument an utter triviality? The answer is clear: we should not read (β) as *explicitly* involving the notion of categorical free will, but, instead, take seriously van Inwagen's statement that he is willing to use the phrase 'has a choice' in exactly the sense that is *relevant in debates about moral responsibility* (p. 104). With this qualification we can understand his hesitation about (β) and his subsequent consideration of conditional analyses of ability in interpreting 'Np' when he admits that (β) would then be invalidated (p. 122). Though he rejects conditional analyses of ability, (β) and the Third Argument are spared the taint of triviality.

This is the opening for which our compatibilist has been waiting. He now gives a reading of 'has a choice' in terms of some notion of doxastic freedom, drawing upon a suitable combination of conditions (C1)-(C4). Minimally, if X has a choice about whether p then the course of action of his bringing about p must be presumed by X as an open alternative, that is, (C1) must be satisfied. Requiring only (C1), Np becomes the claim that no one has yet presumed that his bringing about p is an open alternative, and, by conditions (E) and (C), the same holds for the course of action of his not bringing about p . It is not difficult to see that $N(p \supset q)$ and Np might be satisfied under this interpretation but Nq not. If determinism is true, then Adrian's having lied to Bamia at time t , say, 7 p.m. GMT on June 19, 1972 A. D., was determined by the state of the world at some point 30 million years ago, expressible by 'P'. Conceivably, both $N(P \supset \text{Adrian lied to Bamia at } t)$ and $N(P)$ are true since no one has ever satisfied (C1) with respect to either bringing about $(P \supset \text{Adrian lied to Bamia at } t)$ or bringing about P. At the same time, $N(\text{Adrian lied to Bamia at } t)$ could be false insofar as Adrian may well have presumed, at some time appropriately prior to t , that bringing about his lying to Bamia at t was an open alternative for him, or, if not this, then some other course of action of which his lying to Bamia at t was a foreseeable consequence. A similar result can be obtained if one adds any of (C2)-(C4) to (C1) in unpacking 'has a choice'. It is evident, therefore, that a compatibilism anchored on a notion of doxastic freedom can safely avoid commitment to rule (β).¹⁵

Rejecting (β), the compatibilist can cast away the Third Argument and, by van Inwagen's own admission, rule (B) and the second argument for thesis (T2). By various adjustments, the First and the Second Arguments for incompatibilism fall as well—given that a good objection to one of the three arguments is recognized as a good objection to the others (p. 57). We have, thereby, undermined the support that van Inwagen supplies for his central thesis (T1). Moreover, we have toppled (T2) and, with it, the remaining support for (T3) and the sole support he presents for (T4)—where these theses are understood as involving *categorical* free will.

Let us take final stock of what has been said. My argument has been that if "free will" is interpreted categorically then (T1) is undeniably true, though neither (T2) nor (T3) are, while the truth-value of (T4) remains as open question. On the other hand, if a suitable variety of doxastic freedom is intended, then each of (T2), (T3) and (T4) is solidly entrenched, but (T1) fails. In either case, there is hope for a compatibilism safely immunized from the Con-

sequence Argument yet strong enough to deal adequately with the complex phenomenon of moral responsibility.

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NOTES

¹The proper understanding of van Inwagen's use of 'possible' is a matter of some delicacy. At one point he states that by 'possible' he means "what philosophers have traditionally called 'logical possibility' " (p. 231), but goes on to say that he dislikes this term since many "important" possibilities do not owe their modal status to logic. Elsewhere, he uses 'possible' in what he calls a "broadly logical sense," citing Plantinga (1974), (see pp. 67 and 230). However, a precise characterization is lacking, and this makes it difficult to gain a thorough grasp of his concept of free will. When I rule out logical possibility as the modality at stake, therefore, I do so on the understanding that p is logically possible iff p is consistent with logical laws.

²The term 'categorical' in application to ability also appears in Lamb (1977) and Tichy and Oddie (1983), and while in neither case is categorical ability defined as above, the incompatibilist tone of these articles suggests a similar concept. The notion of relativized modalities have been discussed in several places, e.g., Reichebach (1975) and Smiley (1963), and see, also, Falk (1981), p. 147, where the definition of incompatibilism in terms of relative modality is explicitly recognized. My preference is to define relativized modalities with a double index as follows: let K be any consequence relation (see Kapitan (1982)), and S any set of propositions; then proposition p is K -ly possible relative to S iff $\sim p$ is not a K -consequence of S , or, in other words, p is K -ly consistent with S . Where ' $P \cup L$ ' signifies the union of the set of truths about the world prior to time t with the set of propositions expressing the laws of nature, then p is categorically possible with respect to time t just in case p is logically possible relative to $P \cup L$. Perhaps van Inwagen's broadly logical possibility (see note 1) can be analogously defined, but I venture no guesses.

³The use of 'choose' is innocent; I mean to use a term indicating some sort of *intentional effort* on the agent's part towards a given course of action. Other candidates might, of course, be preferable, e.g., 'undertakes'. The expression 'he' in (E) — and in (C) below — is intended to convey the agent's self-reference (see Castañeda's treatment of *quasi-indicators* in Castañeda (1966 and 1967) and other papers). The term 'presumes' should be thought to represent some doxastic state, though not necessarily one that presupposes an ability to articulate the content involved. Finally, it may frequently be necessary to include probability qualifiers on the biconditional in cases where the agent does not assume that his intentional efforts will be guaranteed success.

⁴Taylor (1966) and others have argued that a deliberator cannot *know* which course of action he will select before he decides upon it, though this position is far from secure (see Kapitan (1985)). Nevertheless, there is a sense in which a deliberator harbours a degree of uncertainty about what he will do before he decides upon it, cf., Ginet (1962) and O'Shaughnessy (1980), and I have contended that this is better construed as the agent's presumption that he himself is undecided and uncertain. The alleged *awareness* of one's own

freedom, which some urges is to be distinguished from merely occurrent belief (see Boyle, *et al* (1976), pp. 18-23), would be impossible if freedom is analyzed via categorial possibility (see Cornman and Lehrer (1968), pp. 131-147), though not, perhaps, if doxastic contingency is at stake.

⁵I do not pretend that the notions of *blaming* and *praising* are themselves clear, nor do I rule out alternative descriptions of holding one responsible. Tentatively, acts of blaming can include punishment, verbal reproaches, complaints to authorities, and so on, but I make no assumptions about what the blamers must believe about the moral character of the blamed.

⁶See, for example, Brandt (1961), p. 149, who writes: "When philosophers say that human beings are 'morally responsible' for their actions, what they apparently mean—although one perhaps does them an injustice if one supposes anything specific is meant—is that it is right and proper, sometimes, to engage in blaming and praising . . ." See also Ducasse (1961), p. 168, Frankena (1973), p. 73, and Sankowski (1980), pp. 294-6. Davis (1979), p. 134 and Wolf (1980), *passim*, speak of moral responsibility in terms of an agent's *deserving* blame or praise, though I am uncertain if this amounts to the same thing as the justifiability of someone's praising or blaming the agent.

⁷Castañeda (1974), chapter 7, distinguishes the moral *ought* from the unqualified or overriding *ought* and is critical of the persistent conflation of the two notions, especially as it concerns practical thinking (see Castañeda (1975).

⁸It is not difficult to devise examples illustrating the need for some such distinction in responsibility talk. Imagine a prime minister who, at a critical period in his country's history, is called upon to make decisions which will be monumental in shaping the future, and suppose that he is the type of person who is especially sensitive to criticism and prone to suffer from a lack of self-confidence upon being blamed for anything he has done, a state which impairs his ability to think practically. Now imagine that during a crucial cabinet meeting he drums his fingers on the table for the sole purpose of annoying the foreign minister whom he knows is bothered by the sound. Assuming that all present know of the prime minister's sensitivities, it would seem unlikely that anyone is justified in blaming the prime minister for his action, including, we can suppose, himself. Still, there is a firm sense in which he is downright nasty in acting as he does.

⁹Davis, (1979), pp. 137-8, comes close to a view of this sort as concerns moral responsibility, and an extended application to legal responsibility can be found in Kenny (1978).

¹⁰It is surprising that van Inwagen does not consider concrete states-of-affairs more seriously in his argument. In one of the more frustrating footnotes—in a book that is filled with vital footnotes—he discusses "Kim-Martin" events, dubbing them *highly specific* universals simply because one could have been caused by different antecedent events from those that in fact caused it (note 19, pp. 241-2). To suppose that any event-particular could have this feature, he goes on, "is to violate my intuitions, at any rate, about particulars." This is certainly an inconclusive, even question-begging, objection in the absence of a suitably detailed theory of particulars, and the same applies to his second criticism in that note: "every Kim-Martin event is such that there is one particular moment (its third term) such that the event must happen just at that moment if it happens at all. But surely, Caesar's death might have happened at least a few moments earlier or later than it in fact did . . ." The obvious Kim-Martin rejoinder would be that the phrase 'Caesar's death' here signifies an event-type which, indeed, could have occurred at a different time than it did, but this is only to draw attention to the multiple use of the term 'event' in ordinary English and does not indicate any metaphysical defect in the theoretical entities to which they also apply this label. Aside from the ontological issue, however, the strongest argument favoring the introduction of concrete states-of-affairs into an account of responsibility is that the latter is frequently dependent upon intention, and intention, when directed towards bringing about some result, concerns that for which the "same causes" criterion fails—as evidenced when we deliberate about different means to one and the same end.

¹¹Taylor (1974), pp. 49-51, discusses this type of case in criticizing soft determinism, and so do many others (see Foley (1978), Shaw (1979), Wolf (1980), and Fischer (1982)).

¹²In ruling out the mode of determination as an automatic exempting factor it should be noted that if determinism is true and the puppet is a genuine possibility, it is easy to imagine the controlling source to be more remote via hypotheses concerning genetic engineer-

ing, operant conditioning, or preprogrammed devices implanted in the brain from birth. Or, we can think of the controlling source in the image of Jonathan Edwards' God, for whom we are all puppets of one sort or another, yet responsible. The ease with which many reject the notion of a responsible puppet (see Fischer (1982) and Wolfe (1981)), I suspect, is in part due to the tacit assumption that we *know* the puppet to be, just that, a puppet, since we have described him as such. While this blocks any justification *we* might have from *holding* him responsible, it does not do the same for those lacking such knowledge, and it seems wholly irrelevant to judgments from the internal perspective.

¹³It must be remembered that occurrences of 'his' and 'he' in each of the clauses (1)-(4) are within attitudinal scope. This is crucial, for while X's ϕ -ing is contingent relative to what he himself believes it might not be so relative to what *he*—that is, X, in the third person—believes (see Kapitan (1982)).

¹⁴Those who scoff at this seemingly outlandish effort to derive freedom from the presumption that one is free might be surprised to discover the following passage in Kant's *Grundlegung*: "Now I say that every being which cannot act otherwise than under the idea of freedom is thereby really free in a practical respect. That is to say, all laws which are inseparably bound up with freedom hold for it just as if its will were proved free in itself by theoretical philosophy" (1959, p. 66). The footnote to this passage is also relevant.

¹⁵Versions of the Consequences Argument have also been discussed in Lamb (1977), Ginet (1980), Slote (1982), Fischer (1983), and Nathan (1984). Ginet's rendition also involves rule (β), and he defends it (1983) by means of a puppet example (in response to Fischer's 1983 critique). Still, the road remains open for alternative compatibilist analyses of power, ability and freedom which might be more successful in invalidating (β), as Slote (1982) has emphasized.